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Case Number: 22STCV01858 Hearing Date: August 14, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 08/14/2026

CASE NUMBER: 22STCV01858

CASE NAME: SARAH NAZARI, et al. vs SENSITIVE ENVIRONMENTAL INC...

MOVING PARTY: Cross-Complainant Biotesting
Inc.

OPPOSING PARTY: Cross-Defendant/Defendant Sensitive
Environmental Inc.

PROCEEDING: Motion to compel further re: biotesting rfps, set one

RULING SUMMARY: Cross-Complainant Biotesting, Inc.'s

Motion to Compel Sensitive Environmental to Provide

Supplemental Verified Responses to Requests for Production, Set One, is: (1) denied

as to RFP No. 1, unless an appropriate protective order is signed by the Court;

(2) granted subject to a privilege log in part as to RFPs No. 2 through 4; (3)

granted as to RFP No. 5, with the proviso that, in its supplemental verified

response, Sensitive Environmental may include the following language: "This response is based upon the understanding, to which Biotesting has agreed, that this category is seeking photographs

of conditions at the Project that were alleged or are alleged to be defective

and that the response is not an admission by the responding party to any construction

defects"; (4) granted as to RFP No. 6, subject to the limitation that the

communications sought are limited to those regarding the PROJECT, defined in

the RFPs as the “real property located at 4036 Yankee Drive, Agoura Hills, California”; (5) granted in totality as to RFP Nos. 7 through 10.

Defendant/Cross-Defendant Sensitive

Environmental, Inc. shall serve Code-compliant verified supplemental responses and produce the responsive documents in the manner required by the Code, and provide any privilege log as ordered, within 30 days of this Ruling.

Background

On January 18, 2022, plaintiffs Sarah Nazari (“Nazari”) and Perrin Davidson (“Davidson” and, collectively, “Plaintiffs”) filed a Complaint against defendants Sensitive Environmental, Inc. (“Sensitive Environmental”); Cari Sladek (“Cari”)¹; Gary Sladek (“Gary”); and Does 1 through 50, inclusive, alleging eight causes of action for (1) Breach of Contract against Sensitive Environmental; (2) Fraud (Intentional Misrepresentation) against all defendants; (3) Negligent Misrepresentation against all defendants; (4) Suppression of Fact against all defendants; (5) Constructive Fraud against all defendants; (6) Negligence against all defendants; (7) Quiet Title as against Sensitive Environmental; and (8) Declaratory Relief as against Sensitive Environmental.

Plaintiffs allege that they contacted Sensitive Environmental, including Cari and Gary as agents, for the purpose of asbestos contamination clean up and removal; a contract was signed; Sensitive Environmental began demolition work, but stated that they could not complete it; Plaintiffs informed Cari that Sensitive Environmental was to cease work and remove their tools and equipment; the work was incomplete; and Plaintiff’s had to find another company to do asbestos contamination clean up and removal as well as fix the damages that Sensitive Environmental caused. Plaintiffs allege that after all of this, Sensitive Environmental recorded a mechanic’s lien on their property.

On April 29, 2022, Sensitive Environmental, Cari, and Gary (collectively “Sensitive Defendants”) filed their Answer. On July 27, 2023, Plaintiffs amended the fictitious name of Doe 1 to Biotesting, Inc. (“Biotesting”).

On September 03, 2024, Plaintiffs dismissed Sensitive Defendants.

On August 19, 2025, Biotesting filed its Answer and Cross-Complaint. Biotesting's Cross-Complaint alleges three causes of action against Sensitive Defendants: (1) Equitable Indemnity, (2) Contribution/Apportionment of Fault; and (3) Declaratory Relief.

On September 11, 2025, Biotesting filed a Motion for Judgment on the Pleadings, which granted with leave to amend as to the (1) Second Cause of Action for Fraud (Intentional Misrepresentation); (2) Third Cause of Action for Negligent Misrepresentation; (3) Fourth Cause of Action for Suppression of Fact; (4) Fifth Cause of Action for Constructive Fraud; (5) Sixth Cause of Action for Negligence; and (6) Eighth Cause of Action Declaratory Relief.

On April 23, 2026, Plaintiffs filed a First Amended Complaint ("FAC") against Biotesting, alleging the following causes of action: (1) Fraud (Intentional Misrepresentation); (2) Negligent Misrepresentation of Fact; (3) Negligent Misrepresentation of Fact²; (4) Constructive Fraud; and (5) Negligence. Plaintiffs did not add Biotesting in by name but rather state that Biotesting is designated as Doe 1 in the original complaint. (FAC ¶ 8.) Plaintiffs now allege that Biotesting was the asbestos consultant to provide the remediation survey and was responsible for issuing the final clearance report and the remediation survey was negligently prepared.

On May 1, 2026, Biotesting filed this Motion to Compel Sensitive Environmental to Provide Supplemental Verified Responses to Requests for Production ("RFPs"), Set One ("Motion to Compel").

On May 12, 2026, Biotesting filed a Demurrer with Motion to Strike against the FAC; the Court sustained the Demurrer without leave to amend. The Motion to Strike was deemed moot.

On August 3, 2026, Sensitive Environmental filed its Opposition to the Motion to Compel, and on August 6, 2026, Biotesting filed its Reply.

REQUEST FOR
JUDICIAL NOTICE

Exh. No. 6 [Notice of Ruling of
Court Order Sustaining Demurrer with Motion to Strike to

Plaintiff's First Amended
Complaint]: Granted.

LEGAL STANDARD

"Unless otherwise limited by order of the court in
accordance with this title, any party may obtain discovery regarding any
matter, not privileged, that is relevant to the subject matter involved in the
pending action or to the determination of any motion made in that action, if
the matter either is itself admissible in evidence or appears reasonably
calculated to lead to the discovery of admissible evidence." (Code of Civ.
Proc. § 2017.010.)¹ For discovery purposes, information is regarded as relevant
"if it might reasonably assist a party in evaluating the case, preparing for
trial, or facilitating settlement thereof." (City of Los Angeles v. Superior
Court² (2017) 9 Cal.App.5th 272, 288.)³

¹

A motion to compel further responses to a demand for
inspection or production of documents ("RFP") may be brought based on (1)
incomplete statements of compliance; (2) inadequate, evasive, or incomplete claims
of inability to comply; or (3) unmerited or overly generalized objections.⁴
(Code Civ. Proc. § 2031.310(a).)⁵

²

Notice of the motion must be given within 45 days of the
verified response, or any supplemental verified response, or on or before any
specific later date to which the demanding party and the responding party have
agreed in writing. (Code Civ. Proc. § 2031.310(c).)⁶

³

A motion to compel further production must set forth
specific facts showing⁷ good cause⁸ justifying the discovery⁹ sought¹⁰ by the
inspection demand. (Cal. Code Civ. Proc., § 2031.310(b)(1).) In¹¹ Digital

Music News LLC v Superior Court (2014) 226 Cal.App.4th 216, 224, the Court defined “good cause” as a showing that there is “a disputed fact that is of consequence in the action and the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact.”

If the moving party has shown good cause for the requests for production, the burden is on the objecting party to justify the objections. (Kirkland v. Sup. Ct. (2002) 95 Cal. App.4th 92, 98.)

“The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.” (Code of Civ. Proc. § 2017.020(a).) Generally, objections on the ground of burden require the objecting party to produce evidence of (a) the propounding party’s subjective intent to create burden, or (b) the amount of time and effort it would take to actually respond. (West Pico Furniture Co. v. Superior Court (1961) 56 Cal.2d 407, 417.) However, where discovery is obviously overbroad on its face, no such evidence is necessary. (Obregon v. Superior Court (1998) 67 Cal.App.4th 424, 431.)

Trial courts are vested with “wide discretion” to allow or prohibit discovery. (Williams v. Superior Court (2017) 3 Cal.5th 531, 540.)

DISCUSSION

As an initial matter, it appears the parties were in dispute as to whether verifications by Sensitive Environmental were received. Sensitive Environmental provided verifications in the declaration of Elijah T. Gaglio (“Gaglio”), filed concurrently with the Opposition, evidencing verifications signed by Cari on March 24, 2026. The verification argument is now moot. Neither party disputes the timeliness of this motion.

Biotesting’s Cross-Complaint remains active and, as such, the motion is not moot.

RFP

No. 1 [Settlement Agreement] – Motion to compel is denied, unless an appropriate protective order is submitted to and signed by the Court. If such a protective order is entered by the Court, then Sensitive Environmental shall produce the settlement agreement to Biotesting's counsel, subject to the protective order. In *Mediplex of California, Inc. v. Superior Court* (1995) 34 Cal.App.4th 748, 753-54 ("Mediplex"), the Court, citing two cases that arrived at the same conclusion, held that a trial court erred in proceeding with a motion for good faith settlement without having compelled a party seeking an order for good faith settlement to produce the settlement agreement to the party opposing the motion. Sensitive Environmental has represented that it has communicated to Biotesting that it is willing to produce its settlement agreement with plaintiff to Biotesting provided the parties stipulate to a protective order because of the confidentiality provision in the agreement, and Biotesting is not willing to enter into a stipulated protective order.

RFP

No. 2 [All Documents Associated with the Project] – The Motion to Compel is granted and Sensitive Environment must provide a privilege log to Biotesting, after which time the parties shall meet and confer if there are any disputes over whether the documents identified on the privilege log should be produced, and Biotesting may then file a further motion if no agreement is reached. Sensitive Environmental has presented a statement of compliance when part of the demand is objectionable. Pursuant to Code Civ. Proc. § 2031.240, Sensitive Environmental must provide a response that "contain[s] a statement of compliance, or a representation of inability to comply with respect to the remainder of that item or category" and, when the objection is based on a claim of privilege, "the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log." (Code Civ. Proc. §2031.240(a) & (c).) Here, while Sensitive Environmental has stated it would comply by producing two documents – SEI-0001 to SEI-0075 – it has not provided sufficient factual information for the parties or the Court to evaluate the merits of its objection as to any remaining documents that were withheld.

RFP

No. 3 [All Photographs Taken During the Construction of the Project] – The Motion to Compel with the same terms and conditions as provided in regard to RFP No. 2, as stated above.

RFP

No. 4 [All Photographs Taken Before Commencement of Construction of the Project] – The Motion to Compel with the same terms and conditions as provided in regard to RFP No. 2, as stated above.

RFP

No. 5 [All Photographs of All Construction Defects at the Project] –The Motion to Compel is granted, with the proviso that, in its supplemental verified response, Sensitive Environmental may include the following language: “This response is based upon the understanding, to which Biotesting has agreed, that this category is seeking photographs of conditions at the Project that were alleged or are alleged to be defective and that the response is not an admission by the responding party to any construction defects.” Sensitive Environmental argues that responding to the request would require it to admit that constructive defects existed despite Responding Party’s position that there were none. Biotesting stated that RFP No. 5 does not require any such admission, because it asks for “photographs of conditions at the Project that were or are ‘alleged to be defective.’ This is an explicitly conditional formulation – it asks whether SEI has photographs of conditions that others have alleged to be defective, which requires no concession by SET [sic] that the conditions were in fact defective” (Biotesting Separate Statement, at p.26, ll. 19-25.) But RFP No. 5 requests: “A copy of all photographs of all CONSTRUCTION DEFECTS at the PROJECT.” The Court will grant the Motion to Compel while allowing Sensitive Environmental’s response to reflect that Biotesting is not seeking an admission of defects from it.

RFP

No. 6 [All Communications between Sensitive Environmental and the South Coast Air Quality Management District (“SCAQMD”).] – The Motion to Compel is granted, subject to the limitation that the communications sought are limited to those regarding the PROJECT, defined in the RFPs as the “real property located at 4036 Yankee Drive, Agoura Hills, California.” Sensitive Environmental may include that language in its supplemental response. SCAQMD District exercises regulatory jurisdiction over abatement work.

RFP

No. 7 [All Statements Sensitive Environmental Provided to SCAQMD] – The Motion to Compel is granted with regard to RFP No. 7. It is sufficiently limited and defined. Contrary to Sensitive Environmental’s argument that the RFP asks for all communications whether or not related to the project, the RFP is not that broad

– it asks for “STATEMENTS YOU provided to the South Coast Air Quality Management District RELATED TO the pending ACTION.”

RFP

No. 8 [All Photographs of the Interior of the Project Before Construction by Sensitive Environmental] – The Motion to Compel is granted as to RFP No. 8.

No privilege is asserted as a basis for

Sensitive Environmental's objections. Pursuant to Code Civ. Proc. § 2031.240, Sensitive Environmental must provide a response that “contain[s] a statement of compliance, or a representation of inability to comply with respect to the remainder of that item or category” and, when if the objection is based on a claim of privilege, “the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log.” (See Code Civ. Proc. §2031.240(a) and (c).) Here, while Sensitive Environmental has stated it would comply by producing two documents – SEI-0001 to SEI-0075 – it has not provided sufficient factual information for the parties or the Court to evaluate the merits of its claim.

RFP

No. 9 [All Photographs of the Interior of the Project After Construction by Sensitive Environmental] – The Motion to Compel is granted as to RFP No. 9, for the same reasons articulated for RFP No. 8.

RFP

No. 10 [All Statements Relating to the Project and the Pending Action] – Granted for the same reasons articulated for RFP No. 8. Regarding scope, the request is particularized to written statements related to the project or the action. Pursuant to Code Civ. Proc. § 2031.240, Sensitive Environmental must provide a response that “contain[s] a statement of compliance, or a representation of inability to comply with respect to the remainder of that item or category” and, when if the objection is based on a claim of privilege, “the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log.” (See Code Civ. Proc. §2031.240(a) and (c).) Here, while Sensitive Environmental has stated it would comply by producing two documents – SEI-0001 to SEI-0075 – it has not provided sufficient factual information for the parties or the Court to evaluate the merits of its claim. Further, Sensitive Environmental invokes 2019.030(a)(1), but has not filed a motion for a protective order under the statute.

Accordingly,

the Court rules that the motion is:

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Denied in part as to RFP No. 1;

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Granted subject to a privilege log in part as to
RFPs No. 2 through 4; and

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Granted subject to a narrowed time frame to be
determined at the hearing in part as to RFP Nos. 5 through 7; and

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Granted in totality as to RFP Nos. 8 through 9.

Conclusion

Cross-Complainant

Biotesting, Inc.'s Motion to Compel Sensitive

Environmental to Provide Supplemental Verified Responses to Requests for

Production, Set One, is: (1) denied as to RFP No. 1, unless an

appropriate protective order is signed by the Court; (2) granted subject to a
privilege log in part as to RFPs No. 2 through 4; (3) granted as to RFP No. 5, with
the proviso that, in its supplemental verified response, Sensitive

Environmental may include the following language: "This response is based upon the
understanding, to which Biotesting has agreed, that this category is seeking photographs
of conditions at the Project that were alleged or are alleged to be defective
and that the response is not an admission by the responding party to any construction
defects"; (4) granted as to RFP No. 6, subject to the limitation that the
communications sought are limited to those regarding the PROJECT, defined in
the RFPs as the "real property located at 4036 Yankee Drive, Agoura Hills,
California"; (5) granted in totality as to RFP Nos. 7 through 10.

Defendant/Cross-Defendant

Sensitive Environmental, Inc. shall serve Code-compliant verified supplemental
responses and produce the responsive documents in the manner required by the
Code, and provide any privilege log as ordered, within 30 days of this
Ruling.

Date: _____

William

E. Weinberger

Judge,

Los Angeles Superior Court